

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 2, Honorable Amber Rosen, Presiding

Audrey Nakamoto, Courtroom Clerk

191 North First Street, San Jose, CA 95113

Telephone 408.882-2120

PROBATE LAW AND MOTION TENTATIVE RULINGS

DATE: July 23, 2026

TIME: 10:00 A.M.

TO CONTEST THE RULING: YOU MUST DO THE FOLLOWING OR NO OBJECTIONS WILL BE HEARD – see California Rule of Court 3.1308(a)(1) and Civil Local Rule 8.D:

(1) Call the Court at (408) 808-6856 before 4:00 P.M.

(2) Notify the other side by phone or email before 4:00 P.M. that you plan to appear and contest the ruling

FINAL ORDERS: The prevailing party shall prepare the order unless otherwise ordered. (See California Rule of Court 3.1312.)

TO APPEAR AT THE HEARING: The Court strongly prefers in person appearances. If you must appear virtually, click on the below link or copy and paste into your internet browser and scroll down to Department 2.

https://www.sccscourt.org/general_info/ra_teams/video_hearings_teams.shtml

COURT REPORTERS: The court does not provide official court reporters for civil/probate law and motion hearings. See court website for policy and forms for court reporters at hearing

State and local Court Rules prohibit recording of court proceedings without a Court order.

TROUBLESHOOTING TENTATIVE RULINGS

If do not see this week's tentative rulings, they have either not yet been posted or your web browser cache (temporary internet files) is accessing a prior week's rulings. "REFRESH" or "QUIT" your browser and reopen it, or adjust your internet settings to *see only the current version of the web page. Your browser will otherwise access old information from old cookies even after the current week's rulings have been posted.*

LINE #	CASE #	CASE TITLE	RULING
LINE 1	24PR198048	The Fazzio Family Trust	Click or scroll to line 1 for tentative ruling. Court will issue the final order.
LINE 2	25PR201603	Conservatorship of Gilbert Marosi	Click or scroll to line 2 for tentative ruling. Court will issue the final order.
LINE 3			

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 2, Honorable Amber Rosen, Presiding

Audrey Nakamoto, Courtroom Clerk

191 North First Street, San Jose, CA 95113

Telephone 408.882-2120

PROBATE LAW AND MOTION TENTATIVE RULINGS

LINE 4			
LINE 5			
LINE 6			
LINE 7			
LINE 8			
LINE 9			
LINE 10			
LINE 11			
LINE 12			
LINE 13			
LINE 14			
LINE 15			
LINE 16			
LINE 17			
LINE 18			
LINE 19			
LINE 20			
LINE 21			
LINE 22			
LINE 23			
LINE 24			
LINE 25			
LINE 26			
LINE 27			
LINE 28			
LINE 29			
LINE 30			

Calendar line 1

Case Name: The Fazzio Family Trust

Case No: 24PR198048

Petitioners Katherine Rodda and Anthony V. Fazzio (“Petitioners”) are the children of Anthony J. Fazzio (“Decedent”). Prior to his death, Decedent married Fidelis E. Campion a.k.a. Fidelis De Cruz (“Respondent”) and, in 2019, he amended the Fazzio Family Trust to disinherit Petitioners and leave the bulk of the assets to Respondent. Decedent also recorded a deed transferring his home in Campbell to Respondent. Petitioners initiated this action on September 9, 2024 by filing their Petition to Invalidate Trust Instruments; to Invalidate Deed; Financial Elder Abuse; Disinheritance; Breach of Fiduciary Duty.

Currently before the court is Petitioners’ motion to compel third party Henry Decruz (“Decruz”), Respondent’s brother, to attend his deposition. The motion is unopposed. The motion initially was scheduled for hearing on May 18, 2026 but the court (Hon. Amber Rosen) continued the hearing so that Petitioners could serve Decruz with the motion. The court informed Petitioners that the hearing would be continued and ordered them to properly serve Decruz prior to the continued hearing date.

At the hearing on the motion, Petitioners’ counsel represented that Decruz had not been served with the motion and was evading service of same. Counsel represented that Petitioners would be filing an ex parte request to serve Decruz via alternate means. No such ex parte application has been filed. On July 8, 2026, Petitioners again filed a notice of motion with an attached proof of service that *does not* show service on Decruz.

Code of Civil Procedure section 1987.1, upon which Petitioners rely, has been interpreted to impose the notice and hearing requirements generally applicable to motions. (*Titmas v. Superior Court* (2001) 87 Cal.App.4th 738, 743, quoting *St. Paul Fire & Marine Ins. Co. v. Superior Court* (1984) 156 Cal. App. 3d 82, 86.) Code of Civil Procedure 1005, subdivision (b) requires the moving party to serve “all moving and supporting papers” at least 16 court days before the hearing. The moving party must also file a proof of service five court days before the hearing. (Cal. Rules of Court, rule 3.1300(c).) Petitioners have not established that they have served Decruz with the motion.

Given that the court has already granted a continuance to allow for service of the motion on Decruz, the motion is DENIED.

Calendar line 2

Case Name: Conservatorship of Gilbert Marosi

Case No.: 25PR201603

I. Introduction

This case arises from Rich Marosi’s (“Petitioner”) petition for appointment as conservator of the estate of his father Gilbert Marosi (“Objector”). On April 24, 2026, Petitioner filed an amended petition seeking a conservatorship of both the person and the estate of Objector. Objector, who is represented by appointed counsel, opposes the conservatorship.

Currently before the court is Petitioner’s motion for an independent mental and neuropsychological examination of Objector under Code of Civil Procedure section 2032.320.¹ Objector filed an opposition and Petitioner filed a reply.

II. Discussion

A. Legal Background

As explained in *Conservatorship of G.H.* (2014) 227 Cal.App.4th 1435, 1440-1441, the Civil Discovery Act provides for a mental examination of a party: “Section 2032.020 provides that any party ‘may obtain discovery ... by means of a physical or mental examination ... in any action in which the mental or physical condition ... is in controversy in the action.’ (§ 2032.020, subd. (a).) Section 2032.310, subdivision (a) specifies that ‘the party shall obtain leave of court’ to obtain discovery by means of a mental examination. Section 2032.310, subdivision (b) provides that a ‘motion for an examination under subdivision (a) shall specify the time, place, manner, conditions, scope, and nature of the examination, as well as the identity and the specialty, if any, of the person or persons who will perform the examination.’ [¶] Section 2032.320, subdivision (a) states: ‘The court shall grant a motion for a physical or mental examination under Section 2032.310 only for good cause shown.’ Section 2032.320, subdivision (d) provides: ‘An order granting a physical or mental examination shall specify the person or persons who may perform the examination, as well as the time, place, manner, diagnostic tests and procedures, conditions, scope, and nature of the examination.’” (*Conservatorship of G.H.* (2014) 227 Cal.App.4th 1435, 1440-1441.) “The foregoing statutory provisions establish that a party must submit to mental examination only upon court order.” (*Id.* at p. 1441.)

If the court grants the motion, the order must specify the person or persons who may perform the examination, as well as the time, place, manner, diagnostic tests and procedures, conditions, scope, and nature of the examination. (§ 2032.320, subd. (d).)

B. Merits of the Motion

Petitioner asserts that Objector’s mental functioning is central to the issue raised in the petition, namely, whether a conservator should be appointed because Objector cannot manage his own affairs. The petition requires a capacity declaration (Judicial Council form GC-335) and Petitioner contends that an examination of Objector is required to complete that form. He seeks a mental and neuropsychological examination of Objector by Dr. Eric Freitag, Psy.D. FACPN, a psychologist and board-certified neuropsychologist. Petitioner has provided Dr. Freitag’s curriculum vitae, which establishes that Dr. Freitag meets the requirement that the

¹ All further undesignated statutory references are to the Code of Civil Procedure.

exam must be conducted “by a licensed physician, or by a licensed clinical psychologist who holds a doctoral degree in psychology and has had at least five years of postgraduate experience in the diagnosis of emotional and mental disorders.” (§ 2032.020, subd. (c)(1); Declaration of David Brilliant in Support of Motion, Ex. A.)

Petitioner requests that the examination occur at Dr. Freitag’s clinic, the Mt. Diablo Memory Center, 1910 Olympic Boulevard, Suite 220, Walnut Creek, California 94596 on date set by Dr. Freitag after entry of the court’s order. He requests that the total testing time not exceed four hours, with reasonable breaks, and that Dr. Freitag may pause the examination and resume it in another session if necessary. The following tests and procedures shall be conducted: a clinical interview of Objector; a mental status examination of Objector; and the Montreal Cognitive Assessment (MoCA) and Dr. Freitag may conduct other non-invasive testing if clinically indicated. Dr. Freitag will conduct the examination alone with Objector unless the parties stipulate otherwise.

Objector makes no objection to the method or manner of testing requested by Objector. He contends that he was already examined by Dr. Megha Pokhriyal of the Kaiser Santa Clara Clinic on June 2, 2026 and she determined that he does not have dementia. He argues that he is in good health and lives completely independently without assistance.

Objector has provided a letter from Dr. Pokhriyal in which she states that she is a licensed psychologist and that based on her assessment on June 2, 2026, “Gilbert Marosi does NOT have a diagnosis of dementia (major neurocognitive disorder). The Memory Clinic can only determine lack of capacity in patients with dementia.” As Petitioner argues, the letter from Dr. Pokhriyal is insufficient to establish that Objector has capacity such that a mental examination is not needed. The statement that the Memory Clinic can only determine lack of capacity in patients with dementia suggests that, although Dr. Pokhriyal believes that Objector does not have dementia, he may still suffer from lack of capacity from a different underlying cause. Moreover, as Petitioner points out, Dr. Pokhriyal does not indicate that she reviewed Objector’s medical records, nor does she indicate what tests were conducted. Dr. Pokhriyal’s background is unknown and she did not provide all of the information needed to complete the declaration of capacity form.

Finally, although Objector contends that he is in good health and lives independently, and opposes the conservatorship entirely, Petitioner has provided the court with confidential information that suggests that a conservatorship may be necessary.²

III. Conclusion

The motion is GRANTED. The court will sign the proposed order provided by Petitioner.

² In an effort to protect Objector’s privacy, the court will not discuss the confidential information contained in the record in this order. However, the court notes that Petitioner filed a confidential supplemental information form on April 24, 2026.